

Ahamad Hasan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · WRIT - C No. - 17914 of 2022 · **Writ disposed; relegated to clause 6.8 objection with eight-week stay.**

HEADNOTE

A consumer's writ to quash a distribution licensee's demand notice of Rs.1,96,004 was disposed of without examining merits after the licensee stated that an objection would be decided in a time-bound manner. The Court granted liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directed decision within the next four weeks after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Ahamad Hasan challenged demand notice no. 5498 dated 8 December 2020 issued by the Executive Engineer, Vidyut Vitran Khand 3rd, Moradabad, claiming Rs.1,96,004. The writ was first listed on 29 June 2022; none appeared for the petitioner and it was adjourned as fresh. On 5 August 2022 counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause-6.8-objection

HOLDING

Without expressing any opinion on the merits of demand notice no. 5498 dated 8 December 2020, the Court disposed of the writ by granting liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks, directing that if so filed it be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and restraining coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The writ was closed by directing a clause 6.8 objection to the demand, a time-bound reasoned decision after hearing, and a short stay of coercive recovery pending that disposal. ¶ 4-5

alternative-remedy-statutory-appeal-6.8 The Court declined to examine the demand on merits and relegated the consumer to the statutory objection under clause 6.8 of the Supply Code. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE NO. 5498 DATED 8 DECEMBER 2020 FOR RS.1,96,004

The Court expressly declined to express any opinion on the merits. ¶ 4